

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No.:

-----X
CHRISTOPHER L. GRAHAM**SUMMONS**

Plaintiff,

Plaintiffs designate
KINGS County as the
place of trial.

-against-

THE CITY OF NEW YORK, P.O. SANBATH OUK
(Shield #:3188) and P.O. NICHOLAS HATT (ON
ARREST #K13652969),The basis of venue
is: where the Tort
aroseDefendants.
-----XThe Tort arose in:
KINGS COUNTY**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA, NEW YORK
MAY 29, 2015KAREEM R. VESSUP
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.Attorneys for Plaintiff
CHRISTOPHER L. GRAHAM
89-31 161st Street, Suite 705
Jamaica, New York 11432TO: Corporation Counsel of
The City of New York
100 Church Street
New York, NY 10007P.O Sanbath Ouk
One Police Plaza
New York, NY 10007

P.O. Nicholas Hatt

One Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CHRISTOPHER L. GRAHAM

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. SANBATH OUK
(Shield #:3188) and P.O. NICHOLAS HATT (ON
ARREST #K13652969),

Defendants.
-----X

Plaintiff, **CHRISTOPHER L. GRAHAM**, by his attorneys, **THE LAW OFFICE OF KAREEM R. VESSUP, ESQ.**, complaining of the Defendants herein respectfully allege as follows:

1. That at the time of the commencement of this action Plaintiff **CHRISTOPHER L. GRAHAM** was a resident of the County of Kings, State of New York.

2. At all times mentioned, the Defendant, **THE CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

3. That on May 6, 2014, Plaintiff duly served a Notice of Claim with Intention to Sue upon **THE CITY OF NEW YORK** electronically by using the e-filing system maintained by the NYC Comptroller's Office.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment or payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are

based.

5. That a statutory hearing was held in this matter on September 4, 2014 at the offices of Colon & Peguero LLP 61 Broadway New York, NY before a notary public of the State of New York. Said hearing occurred prior to the commencement of this action.

6. Upon information and belief, at all times mentioned, the Defendants, **P.O. SANBATH OUK (Shield #:3188) and P.O. NICHOLAS HATT (ON ARREST #K13652969)**, were and continue to be police officers of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

FACTS

7. On or about May 23, 2013 Plaintiff **CHRISTOPHER L. GRAHAM** was an employee of the IKEA store located at 1 Beard Street in Brooklyn, New York.

8. On that same date an individual named Nia Jervier filed a complaint with the NYPD 76th Pct. indicating that her Apple I-Phone was stolen.

9. As a result officers of the NYPD 76th Pct. began an investigation into the complaint.

10. During the course of the investigation NYPD officers, including Defendants herein, received information establishing that Plaintiff was not the perpetrator of this crime.

11. Plaintiff **CHRISTOPHER L. GRAHAM** was arrested on June 11, 2013 within the IKEA Store located at 1 Beard Street Brooklyn, NY by Defendant **P.O. SANBATH OUK.**

12. Plaintiff was thereafter taken to the NYPD 76th Pct.

13. One or more of the Defendants named herein contacted and transmitted information to the Kings County District Attorney's Office for the purpose of initiating a criminal prosecution against Plaintiff.

14. As a result Plaintiff **CHRISTOPHER L. GRAHAM** was prosecuted in Kings County Criminal Court under Docket No. 2013CK002034 and charged with crimes under the New York State Penal Law that he was innocent of.

15. The prosecution continued until on or about March 5, 2014 when all charges against Plaintiff were dismissed and sealed by the Honorable Judge A. Calabrese.

AS AND FOR A FIRST CAUSE OF ACTION

16. Plaintiff realleges, repeats and reiterates the allegations contained in Paragraphs "1" through "15" with the same force and affect as repeated herein.

17. On or about June 11, 2013 at approximately 3:45pm, beginning at IKEA located at 1 Beard Street Brooklyn, New York and continuing at the NYPD 76th Precinct in the County of Kings, City and State of New York the Defendants jointly and severally subjected Plaintiff **CHRISTOPHER L. GRAHAM** a to reasonable

apprehension of a harmful and/or offensive touching.

18. The aforementioned conduct of defendants was not privileged by law nor did Plaintiff give his consent to the conduct.

AS AND FOR A SECOND CAUSE OF ACTION

19. Plaintiff realleges, repeats and reiterates the allegations contained in Paragraphs "1" through "18" with the same force and affect as repeated herein.

20. On or about June 11, 2013 at approximately 3:45pm, beginning at IKEA located at 1 Beard Street Brooklyn, New York and continuing at the NYPD 76th Pct. in the County of Kings, City and State of New York the Defendants jointly and severally subjected Plaintiff **CHRISTOPHER L. GRAHAM** to a harmful and offensive touching.

21. The aforementioned conduct of defendants was not privileged by law nor did Plaintiff consent to the touching.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiff realleges, repeats and reiterates the allegations contained in Paragraphs "1" through "21" with the same force and affect as repeated herein.

23. On June 11, 2013 the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested and imprisoned

the Plaintiff, restrained him and his liberty and then took him into custody to the NYPD 76th precinct in the County of Kings.

24. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

25. Plaintiff realleges, repeats and reiterates the allegations contained in Paragraphs "1" through "24" with the same force and affect as repeated herein.

26. That on June 11, 2013 Plaintiff was arrested and from that time until the end of the criminal prosecution on or about March 5, 2014, Defendants **P.O. SANBATH OUK (Shield #:3188) and P.O. NICHOLAS HATT (ON ARREST #K13652969)** deliberately and maliciously prosecuted Plaintiff **CHRISTOPHER L. GRAHAM**.

27. The Defendants **P.O. SANBATH OUK (Shield #:3188) and P.O. NICHOLAS HATT (ON ARREST #K13652969)**, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff.

28. The commencement of these criminal proceedings was malicious, began in malice and without probable cause, so that the

proceedings could succeed by the Defendants for purposes of career enhancement, promotion or some other benefit.

29. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal proceeding. The Plaintiff made multiple court appearances to defend his liberty as a result of the unjust prosecution and has had to incur expenses to represent his interests during that prosecution.

30. Said prosecution continued until March 5, 2014 when all charges against Plaintiff were dismissed and sealed.

AS AND FOR A FIFTH CAUSE OF ACTION

31. Plaintiff realleges, repeats and reiterates the allegations contained in Paragraphs "1" through "30" with the same force and affect as repeated herein.

32. Defendants **P.O. SANBATH OUK (Shield #:3188) and P.O. NICHOLAS HATT (ON ARREST #K13652969)** owed Plaintiff a duty to act reasonably in the performance of their duties as police officers for the New York City Police Department.

33. Defendants **P.O. SANBATH OUK (Shield #:3188) and P.O. NICHOLAS HATT (ON ARREST #K13652969)** owed Plaintiff a duty to act consistent with the rules, regulations and training of the New York City Police Department and consistent with their oaths to uphold and enforce the laws expressed in the Constitutions of the United States and New York State, and the Laws of the State of

New York.

34. That on June 11, 2013, and continuing thereafter, the Defendants jointly and severally breached the duties owed to Plaintiff by failing to act reasonably in the performance of their duties as Police Officers of the New York City Police Department and by failing to act consistent with the rules, regulations and training of the New York City Police Department, and by failing to act consistent with their oaths to uphold and enforce the laws expressed in the Constitutions of the United States and New York State, and the Laws of the State of New York.

35. As a direct and proximate result of the Defendants breaches of duty Plaintiff sustained damages.

AS AND FOR A SIXTH CAUSE OF ACTION

36. Plaintiff realleges, repeats and reiterates the allegations contained in Paragraphs "1" through "35" with the same force and affect as repeated herein.

37. In relevant part, 42 U.S.C. §1983 provides that, "[e]very person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws shall be liable to the party injured in an action at law,

suit in equity, or other proper proceeding for redress."

38. That on or about June 11, 2013 and continuing thereafter, Defendants **P.O. SANBATH OUK (Shield #:3188) and P.O. NICHOLAS HATT (ON ARREST #K13652969)** were New York City Police Department Police Officers and/or Detectives acting under color of law and in the course of their duties and obligations.

39. That upon information and belief on June 11, 2013 Defendants **P.O. SANBATH OUK (Shield #:3188) and P.O. NICHOLAS HATT (ON ARREST #K13652969)** discriminated against Plaintiff and assaulted, battered, falsely arrested, falsely imprisoned and maliciously prosecuted him in violation of his rights and privileges guaranteed by the Fourth and Fourteenth Amendments of the United States Constitution, as well as under and other applicable federal constitutional and statutory rights.

40. In the manner aforesaid Defendants **P.O. SANBATH OUK (Shield #:3188) and P.O. NICHOLAS HATT (ON ARREST #K13652969)** acted maliciously, willfully and with wanton disregard of Plaintiff rights to be free from:

- a. Unreasonable search and seizure
- b. False Arrest and Warrantless Arrest
- c. False Imprisonment
- d. Civil Assault and Battery
- e. Right to be free from summary punishment
- f. Unlawful interference with his liberty rights
- g. Malicious Prosecution

41. As a result of Defendants' conduct Plaintiff suffered a deprivation of the above enumerated rights guaranteed by the United States Constitution, the laws of The United States and the State of New York and as a result has been damaged.

AS AND FOR A SEVENTH CAUSE OF ACTION

42. Plaintiff realleges, repeats and reiterates the allegations contained in Paragraphs "1" through "41" with the same force and affect as repeated herein.

43. Defendant **THE CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only make an arrest based on probable cause.

44. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of **THE CITY OF NEW YORK** are not to arrest individuals such as the Plaintiff here where probable cause is lacking.

45. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce

the law, that Probable cause must be present before an individual such as Plaintiff herein can be arrested.

46. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused that police officers to falsely arrest, maliciously prosecute, illegally seize and search the Plaintiff, commit an assault/battery to his person under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

47. Plaintiff realleges, repeats and reiterates the allegations contained in Paragraphs "1" through "46" with the same force and affect as repeated herein.

48. Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals. Defendant failed to act reasonably in supervising, disciplining, removing or otherwise taking

appropriate action against these officers to protect the Plaintiff herein and other members of the community similarly situated.

49. As a direct and proximate result of the Defendant's failures Plaintiff sustained physical and psychological injuries and was otherwise damaged.

WHEREFORE, the Plaintiff, **CHRISTOPHER L. GRAHAM**, demands judgment against the Defendants, together with the costs and disbursements of this action in an amount of damages greater than the jurisdictional limit of any lower court which would otherwise have jurisdiction. Additionally, Plaintiff demands in respect of all causes of action, punitive damages and attorney fees pursuant to 42 USC Section 1988.

Dated: JAMAICA, NEW YORK
MAY 29, 2015



Kareem R. Vessup

ATTORNEY'S VERIFICATION

Kareem R. Vessup Esq., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury.

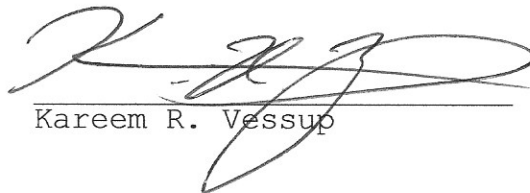
I am a member of the LAW OFFICE OF KAREEM R. VESSUP, attorney-of-record for Plaintiff **CHRISTOPHER L. GRAHAM** in the action within. I have read the annexed:

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein, which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff is because the Plaintiff is not presently in the county wherein I maintain my Law Office.

DATED: JAMAICA, NEW YORK
MAY 29, 2015


Kareem R. Vessup

Index No.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

CHRISTOPHER L. GRAHAM,

Plaintiff,

- against -

THE CITY OF NEW YORK, P.O. SANBATH OUK (Shield #: 3188) and P.O. NICHOLAS
HATT (ON ARREST #K13652969),

Defendants.

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF KAREEM R. VESSUP ESQ.

Attorneys for Plaintiff

CHRISTOPHER L. GRAHAM

89-31 161st Street, Suite 705

Jamaica, New York 11432

Tel (718) 219-8744

Fax (718) 228-7733
